

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
MONIQUA RENEE BUTLER,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER VERGAS,
BADGE NUMBER UNKNOWN, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS OF THE
28TH PRECINCT,

Defendants.

Index No.:
Date Purchased:Plaintiff designates New York
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**Plaintiff resides at
70 Malcolm X Blvd., Apt. 1-B
New York, New York 10026-----X
To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
November 7, 2014
TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
MONIQUA RENEE BUTLER
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007POLICE OFFICER VERGAS,
BADGE NUMBER UNKNOWN,
28th Police Precinct
2271-89 Eighth Avenue
New York, New York 10027

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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MONIQUA RENEE BUTLER,

Index No.:

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER VERGAS,
BADGE NUMBER UNKNOWN, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS OF THE
28TH PRECINCT,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff MONIQUA RENEE BUTLER by and through her attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, respectfully alleges as follows:

1. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
2. That at all times hereinafter mentioned, Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.
3. Upon information and belief, that at all times hereinafter mentioned, Defendant POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW YORK as a police officer.
4. That at all times hereinafter mentioned, Defendant POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.
5. That at all times hereinafter mentioned, Defendant POLICE OFFICER VERGAS,

BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County of New York, City of New York, and under the authority of his office as police officer for said county and city.

6. Upon information and belief, that at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

7. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of their office as police officers for said city and county.

9. That on November 12, 2013 at approximately 1:50 p.m., Plaintiff MONIQUA RENEE BUTLER was exiting the Kennedy Fried Chicken Restaurant located in the vicinity of 110th Street and Malcolm X Boulevard, when she was suddenly accosted by members of the New York City Police Department including, but not limited to, Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT.

10. That on the aforementioned date, time and place, Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, stopped Plaintiff MONIQUA RENEE BUTLER, asked her to step back in the restaurant and asked Plaintiff “where is it at?” Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT then searched Plaintiff MONIQUA RENEE BUTLER and found nothing.

11. Thereafter, Plaintiff MONIQUA RENEE BUTLER was handcuffed and placed under

arrest for Tampering with Physical Evidence despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

12. That Plaintiff MONIQUA RENEE BUTLER was transported to the 28th Police Precinct (2271-89 Eighth Avenue, New York, New York 10027) of the New York City Police Department where she was booked and placed inside a holding cell.

13. That on November 12, 2013 at approximately 8:30 pm Defendant POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN walked in to the holding cell and informed Plaintiff MONIQUA RENEE BUTLER that the charges against her were dropped. Plaintiff MONIQUA RENEE BUTLER was then released from custody.

14. That on or about January 9, 2014, within 90 days of the happening of the complained of incident but more than 30 days prior to the commencement of this action, Plaintiff MONIQUA RENEE BUTLER duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant and claimant's attorney; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

15. Upon information and belief Defendant CITY OF NEW YORK waived its right to a General Municipal Law 50-h Hearing in this matter.

16. This action is commenced within one year and ninety days after the cause of action arose.

17. This action falls within one or more of the exceptions set forth in CPLR §1602.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

18. Plaintiff MONIQUA RENEE BUTLER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

19. That at the aforementioned time and place, Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, placed Plaintiff MONIQUA RENEE BUTLER under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

20. That Plaintiff MONIQUA RENEE BUTLER has not committed any offense and Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

21. That Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT were aware that probable cause did not exist for the arrest and detention of Plaintiff MONIQUA RENEE BUTLER and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff MONIQUA RENEE BUTLER and such actions were committed in bad faith.

22. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff MONIQUA RENEE BUTLER and such actions were committed in bad faith.

23. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants CITY OF NEW YORK, POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff MONIQUA RENEE BUTLER was deprived of the rights and immunities secured to her under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), her liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

24. As a further result of the above-described acts, Plaintiff MONIQUA RENEE BUTLER was deprived of the rights and immunities secured to her under the Constitution and laws of the

United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

25. Plaintiff MONIQUA RENEE BUTLER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

26. That Plaintiff MONIQUA RENEE BUTLER was falsely imprisoned from November 12, 2013 at approximately 1:50 pm to 8:30 pm by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

27. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT intended to confine Plaintiff MONIQUA RENEE BUTLER and Plaintiff MONIQUA RENEE BUTLER was conscious of the confinement, and Plaintiff MONIQUA RENEE BUTLER did not consent to the confinement.

28. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff MONIQUA RENEE BUTLER and damaging Plaintiff MONIQUA RENEE BUTLER in her reputation and depriving her of her liberty.

29. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff MONIQUA RENEE BUTLER suffered damage, all of which is in violation of her rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

30. Plaintiff MONIQUA RENEE BUTLER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

31. Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

32. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority females based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

33. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff MONIQUA RENEE BUTLER .

34. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff MONIQUA RENEE BUTLER as alleged herein.

35. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff MONIQUA RENEE BUTLER as alleged herein.

36. Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff MONIQUA RENEE BUTLER's constitutional rights.

37. All of the foregoing acts by Defendants deprived Plaintiff MONIQUA RENEE

BUTLER of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. To be free from malicious abuse of process;
- E. Not to have cruel and unusual punishment imposed upon him;
- F. To receive equal protection under the law.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE**

38. Plaintiff MONIQUA RENEE BUTLER repeats, reiterates and realleges each and every allegation contained in this complaint.

39. Each and every individual Defendant Police Officer had an affirmative duty to intervene on Plaintiff MONIQUA RENEE BUTLER's behalf to prevent the violation of her constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

40. As a result of the aforementioned conduct of the individual Defendants, Plaintiff MONIQUA RENEE BUTLER's constitutional rights were violated and she was subjected to excessive force and sustained physical injuries.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

41. Plaintiff MONIQUA RENEE BUTLER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

42. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW

YORK; in that the Defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

43. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

44. Plaintiff MONIQUA RENEE BUTLER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

45. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff MONIQUA RENEE BUTLER. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

46. The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff

MONIQUA RENEE BUTLER.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
NEGLIGENCE IN THE PERFORMANCE OF DUTIES**

47. Plaintiff MONIQUA RENEE BUTLER repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

48. That Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, negligently, carelessly and recklessly performed their duties as police officers in that they failed to use such care in the performance of their correctional duties as a reasonably prudent police officer would have used under similar circumstances; and in that Defendant CITY OF NEW YORK, its agents, servants and employees, including Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, were otherwise careless, reckless and negligent.

49. That on or about the 12th day of November, 2013, at approximately 2:50 pm to 8:30 pm, Plaintiff MONIQUA RENEE BUTLER was caused to be injured by Defendant CITY OF NEW YORK, through its agents, servants and/or employees including, but not limited to Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, who negligently, carelessly, and recklessly arrested and imprisoned Plaintiff MONIQUA RENEE BUTLER causing Plaintiff to sustain injury.

50. That the aforesaid occurrence and the resulting injuries to mind and body therefrom were caused wholly and solely by reason of the negligence of Defendant CITY OF NEW YORK, its agents, servants and employees, including Defendants POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT without any negligence on the part of Plaintiff MONIQUA RENEE BUTLER.

51. That by reason of the aforesaid, Plaintiff MONIQUA RENEE BUTLER was injured in the mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

52. As a result of the foregoing, Plaintiff MONIQUA RENEE BUTLER is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00).

WHEREFORE Plaintiff MONIQUA RENEE BUTLER demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER VERGAS, BADGE NUMBER UNKNOWN, AND SEVERAL UNIDENTIFIED POLICE OFFICERS OF THE 28TH PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
November 7, 2014

A handwritten signature in cursive script, appearing to read "Tracie A. Sundack", is written over a horizontal line.

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
MONIQUA RENEE BUTLER
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York,
state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents
thereof; the same is true to my own knowledge, except for the matters therein alleged to be on
information and belief, and as to those matters I believe them to be true. The reason this
Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where
your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my
own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
November 7, 2014


TRACIE A. SUNDACK